could not be questioned as they were supposed to be divine and therefore sacred.

In 1833, the government appointed a Law Commission headed by Lord Macaulay to codify Indian laws. Its labours eventually resulted in the Indian Penal Code, the Western-derived Codes of Civil and Criminal Procedure and other codes of laws. The same laws now prevailed all over the country and they were enforced by a uniform system of courts. Thus it may be said that India was judicially unified.

The Rule of Law

The British introduced the modern concept of the rule of law. This meant that their administration was to be carried out, at least in theory, in obedience to laws, which clearly defined the rights, privileges and obligations of the subjects, and not according to the caprice or personal discretion of the ruler. In practice, of course, the bureaucracy and the police enjoyed arbitrary powers and interfered with the rights and liberties of the people. The rule of law was to some extent a guarantee of the personal liberty of a person. It is true that previous rulers of India had been in general bound by tradition and custom. But they always had the legal right to take any administrative steps they wanted and there existed no other authority before whom their acts could be questioned. The Indian rulers and chiefs sometimes exercised this power to do as they wanted. Under British rule, on the other hand, administration was largely carried on according to laws as interpreted by the courts though the laws themselves were often defective, were made not by the people through a democratic process but autocratically by the foreign rulers, and left a great deal of power in the hands of the civil servants and the police. But that was perhaps inevitable in a foreign regime that could not in the very nature of things be democratic or libertarian.

Equality Before Law